

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

W.P. No.23267 of 2025

Maryam
Versus
Pakistan Railways through its Chief Executive Office, Lahore etc.

J U D G M E N T

Date of hearing: 13.01.2026.
Appellant by: Syed Ishrat Ali Bukhari, Advocate.
Respondents by: Mr. Muhammad Umar Sharif, Advocate/
Legal Advisor for Pakistan Railways.
Mr. Muhammad Zain Qazi, Assistant
Attorney General along with Dr. Sumera
Rana, Divisional Medical Officer, Pakistan
Railways Lahore Division.

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through the instant petition, the petitioner seeks a direction to the respondents to issue an appointment letter in her favour for the post of Junior Commercial Assistant/ Booking (BS-5) in the office of Divisional Superintendent, Pakistan Railways Lahore Division, Lahore, under the Prime Minister's Assistance Package ("PMAP").

2. Learned counsel for the petitioner submits that after successfully qualifying the written test and interview, the petitioner was placed on the approval panel and selected for the post in question. He further contends that the petitioner's appointment stood finalized on regular basis on 16.09.2024; however, under the garb of a judgment of the Hon'ble Supreme Court pronounced on 18.10.2024, the respondents have withheld the issuance of the appointment letter. He argues that petitioner's case constituted a past and closed transaction, therefore, the subsequently judgment of the Hon'ble Apex Court could not be given retrospective effect so as to defeat her accrued and vested rights.

3. Conversely, learned Law Officer, assisted by learned Legal Advisor for the respondents, submits that the Hon'ble Islamabad

High Court, vide order dated 08.12.2022 passed in W.P. No.1146/2022, had restrained the respondents from making contractual or regular appointments under the PMAP, which remained intact. He further submits that subsequently, the Hon'ble Supreme Court, vide judgment dated 18.10.2024 passed in C.P. No.3390/2021, directed the Federal and Provincial Governments to withdraw appointments made under the PMAP without open advertisement, competition, and merit.

4. Heard. Available record perused.

5. The PMAP is an executive policy framed to provide immediate financial relief and allied benefits, including employment, to the dependents of government servants who die in harness or suffer permanent incapacitation during service. It is not disputed that the said policy, having been consistently applied over the years, remained operative and enforceable until it was declared unconstitutional by the Hon'ble Supreme Court in the afore-referred judgment, wherein it was clarified that the judgment would not affect appointments already made of eligible dependents of deceased or retired civil servants. The operative part of the observations is reproduced hereunder:-

“25.

The prescribed Federal and Provincial authorities are directed to withdraw the same. However, it is clarified that the instant judgment shall not affect the appointments already made of the widow/widower, wife/husband or child of deceased or retired civil servants...”

In the present case, the employee/petitioner's father, namely Muhammad Ismail, died on 13.09.2023. The application for the petitioner's appointment was submitted on 05.03.2024. The selection process commenced through issuance of a request letter dated 16.03.2024, addressed to the Chief Personnel Officer, P.R. Headquarters Office, Lahore. The petitioner appeared in the written test and interview on 05.09.2024 and 18.09.2024, respectively and successfully cleared the same. The

recommendations of the Selection Committee were approved by the Divisional Superintendent, P.R. Lahore, on 26.09.2024. Consequently, the petitioner's name was included in the approved panel and he was selected vide letter dated 07.10.2024. It is further borne out from the record that the petitioner underwent medical examination and psychological assessment. Although certain reports were still awaited, it has not been specifically denied that the competent authority had finalized the petitioner's appointment on a regular basis prior to the judgment dated 18.10.2024. Once the competent authority completed the selection process and took a conscious and affirmative decision to appoint the petitioner, her case transcends the stage of mere expectancy and matured into a crystallized entitlement, subject only to the performance of ministerial and procedural formalities, such as issuance of a formal appointment letter.

6. It is a settled principle of law that once a selection process is completed in a lawful and ordinary manner, it cannot be undone arbitrarily. Any subsequent lapse or delay in completing a clerical or inconsequential formality does not render the process incomplete, as a vested right accrues in favour of the selected candidate. Issuance of an appointment letter is a consequential and ministerial act, and the valuable right so created cannot be withdrawn to the detriment of the petitioner. Reference can be made to Muhammad Ismail and others v. Secretary Education, Government of Punjab and another [2000 PLC (C.S.) 112], Rukhsar Ali and 11 others v. Government of N.-W.F.P. through Secretary Education, Peshawar and 3 others [2003 PLC (C.S.) 1453], Dr. Shoukat Pervez v. Federation of Pakistan through Secretary Establishment, Division, Islamabad and another [2011 PLC (C.S.) 26], Fatima v. Federation of Pakistan through Secretary M/O Commerce Islamabad and 2 others (PLJ 2018 Quretta 59) and judgment announced on 22.05.2025, passed in

Constitutional Petition No.(S) 60 of 2024 titled Ayaz Ali & others v. Government of Balochistan Health Department & others.

7. Notably, no allegation of fraud, misrepresentation, concealment, or illegality has been attributed to the petitioner. Denial of appointment in such circumstances would amount to penalizing petitioner for reasons beyond her control, offending the principles of fairness, equity, legitimate expectation, and due process. Moreover, the Hon'ble Apex Court, in its judgment dated 18.10.2024, has protected the appointments already made prior to pronouncement of the verdict. It is clear from the above that the respondents cannot take shelter of the afore-referred judgment of Hon'ble Supreme Court, which will obviously be applied prospectively. Therefore, the respondents cannot rely on this judgment to withhold the petitioner's appointment. Likewise, the reliance of respondents upon the restraining order dated 08.12.2022, passed by the learned Islamabad High Court, Islamabad, is also legally unsustainable.

8. The doctrines of promissory estoppel and legitimate expectation further fortify the petitioner's vested right to appointment. Promissory estoppel is an equitable principle developed by Courts to prevent injustice. Although it is commonly called "promissory estoppel," it does not strictly belong to the law of contract or traditional estoppel. The principle is that when one party, by words or conduct, makes a clear and definite promise to another, intending or knowing that the promise will be relied upon, and the other party actually relies on it, the maker of the promise is bound by it. The promisor cannot withdraw the promise if doing so would be unfair, regardless of whether any prior legal relationship existed between the parties. Unlike strict estoppel, promissory estoppel is not limited by technical requirements and may be used not only as a defence but also as a basis for a legal claim, where justice so requires. Reliance could be placed upon Pakistan through Secretary, Ministry of Commerce and 2 others v.

Salahuddin and 3 others (PLD 1991 Supreme Court 546), Messrs Army Welfare Sugar Mills Ltd and others v. Federation of Pakistan and others (1992 SCMR 1652), Pakistan through Ministry of Finance Economic Affairs and another v. Fecto Belarus Tractors Limited (PLD 2002 SC 208), Rukhsar Ali and 11 others v. Government of N.-W.F.P. through Secretary Education, Peshawar and 3 others [2003 PLC (C.S.) 1453] and National Database and Registration Authority (NADRA) through Chairman, Islamabad and others v. Jawad Khan and 2 others (2023 SCMR 1381).

9. Similarly, the doctrine of legitimate expectation entitles the petitioner to the fruits of the completed process, having nurtured a reasonable expectation of appointment upon panel inclusion and medical clearance; arbitrary denial thereof offends Articles 4 and 24 of the Constitution. Reliance is upon Rana Saqlain Mahmood v. Secretary Local Government and 2 others [2006 PLC (C.S) 596], Dr. Shoukat Pervez v. Federation of Pakistan through Secretary Establishment, Division, Islamabad and another [2011 PLC (C.S.) 26], Fatima v. Federation Of Pakistan through Secretary Ministry of Commerce, Islamabad and 2 others [2018 PLC (C.S.) 292]. Ali Akbar and 8 others v. Government Of Khyber Pakhtunkhwa [2020 PLC (C.S.) 566], Schmidt v. Secretary, of State for Home Affairs' [(1969) 2 CH. 149, Lord Denning at page 170], The Attorney General v Ng Yuen Shiu also known as Ng Kam shing [(1983) UKPC 7], G.C.H.Q. case [(1985) A.C. 374], Bhatt Murphy (a firm) and Others v. The Independent Assessor [(2008) EWCA Civ 755], Jitendra Kumar & Ors Vs. State of Haryana & Anr [(2007) INSC 1249], Union Of India And Ors vs Hindustan Development Corpn. And Ors (AIR 1994 SC 988 / 1993 SCR (3) 128).

10. Needless to say, the executive actions taken under a valid and subsisting policy continue to hold the field so long as the policy remains operative, and rights accrued thereunder cannot be unsettled merely on account of a subsequent change in law or

judicial pronouncement. Judicial declarations of unconstitutionality are ordinarily prospective, particularly where retrospective application would disturb vested rights or cause manifest injustice. The doctrine of prospective overruling safeguards actions taken in good faith under an existing legal regime. While the judgment of the Hon'ble Supreme Court has undoubtedly laid down the law governing future appointments under PMAP, mandating open advertisement, competition, and merit, there is nothing on record to indicate that the said judgment was intended to operate retrospectively so as to nullify appointments already finalized or approvals already accorded under a subsisting policy. Reference can be made to Controller General of Accounts, Government of Pakistan, Islamabad and others v. Abdul Waheed and others (2023 SCMR 111), Commissioner Inland Revenue, Lahore v. Messrs Millat Tractors Limited, Lahore and others (2024 SCMR 700), General Post Office, Islamabad and others v. Muhammad Jalal (PLD 2024 Supreme Court 1276), The Chief Commissioner Regional Tax Office, Bahawalpur and others v. Shaheen Yousaf (2025 SCMR 1076), Commissioner Inland Revenue v. Zia-Ur-Rehman (2024 PTD 1029) and Commissioner Inland Revenue, District Zone, Regional Tax Office, Rawalpindi v. Sh. Ikram Ellahi and 2 others (2025 PTD 137).

11. This protection, however, would not extend to cases where the appointment process had not attained finality, where the selection was merely provisional, or where a subsisting judicial restraint order expressly barred such appointments at the relevant time. Similarly, the benefit of this reasoning would not be available where the competent authority had not taken a final decision or where the matter was still under active consideration. In the present case, unless the respondents are able to demonstrate that the petitioner's appointment was hit by the Hon'ble Apex Court to deny issuance of the appointment letter appears legally unsustainable.

12. For the foregoing reasons, this constitutional petition is **allowed**. The respondents are directed to issue appointment letter in favour of the petitioner for the post of Junior Commercial Assistant / Booking (BS-5) in the office of the Divisional Superintendent, Lahore Division, Lahore, under the PMAP, subject to fulfillment of medical fitness and other requisite codal and departmental formalities. The concerned authorities are further directed to expedite the completion of the remaining examinations and formalities. The entire process shall be completed within a period of thirty (30) days from the date of receipt of a certified copy of this order.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVE FOR REPORTING

Judge

Sultan